Collaborative Essay Practice

Group Member Names:

Discussion Facilitator: _____

Scribe: _____

Rubric & Checklist Expert: _____

Accountability & Timekeeping: _____

Prompt: To what extent did the Founders create a Constitution that successfully protects citizens' natural rights (life, liberty, and property)?

Step 1: Analyze the prompt. First, rewrite it in your own words:

How well did the people who wrote the Constitution build a government that actually protects everyone's rights to life, liberty and property?

Extent = how much, so the answer is never just yes or no; **Founders** = who; **Constitution** = what; **Successfully protects** = what you're judging; **Natural rights** = rights everyone is born with (John Locke): life, liberty and property

Step 2: When you are answering, think of this as a spectrum. Identify the three options you can argue:

A "to what extent" prompt, so the options are places on a spectrum. We argue between Option 1 and Option 2.

Option 1: To a great extent, the Founders built strong protections (separation of powers, checks and balances, the Bill of Rights) ← we argue between 1 and 2

Option 2: To a limited extent, they protected natural rights, but only for some people (white men with property)

Option 3: Very little, they failed, because the Constitution protected slavery and denied millions their rights

Step 3: Gather evidence before deciding which side to argue:

	Evidence	Which option from step 2 does this support and why?
Option 1	**Separation of powers and checks and balances** Articles I, II and III split power among Congress, the President and the courts (Montesquieu's idea). The President can veto, Congress can override with 2/3 of both houses, the Senate confirms judges.	Option 1. No branch can grow strong enough to take away people's liberty, which is how a government turns into a tyranny.
Option 2	**The Bill of Rights (1791)** The 1st Amendment protects speech and religion. The 4th bans unreasonable searches and seizures. The 5th says no one can be "deprived of life, liberty, or property, without due process of law" and the government can't take private property without paying for it.	Option 1. The 5th Amendment protects life, liberty and property almost word for word, so this is the strongest proof.
Option 3	**Slavery was protected** The Three Fifths Compromise (Article I) counted enslaved people as 3/5 of a person. The Fugitive Slave Clause (Article IV) forced escaped people to be returned. The slave trade was allowed until 1808.	Option 3 (or 2). Enslaved people had none of their natural rights protected, so the Constitution failed millions of people.
Option 4	**Only some people had a voice** At first mostly white men who owned property could vote. Women, enslaved people and Native Americans were left out.	Option 2. Rights were protected well, but only for some citizens.
Option 5	**The Constitution was built to grow** Article V lets it be amended: the 13th (1865) ended slavery, the 14th (1868) says no state can take "life, liberty, or property, without due process of law" and guarantees equal protection, the 15th (1870) banned racial voting limits. Marbury v. Madison (1803) gave courts judicial review to enforce rights.	Option 1, with a limit. The Founders' design let protection reach everyone over time, even though it didn't at first.

Step 4: Draft your response, using the rubric and checklist to guide how you construct your argument

Context: The background information that shows your reader why this topic is significant by answering key questions like who, what, where, when, and why. Aim to write at least 3 connected context sentences before reaching your thesis statement.
After the Revolution, Americans had just fought a war against a king they believed had violated their natural rights. The Articles of Confederation that followed created a government too weak to protect anyone, so in 1787 delegates met in Philadelphia to write a new Constitution. Inspired by John Locke, who argued that governments exist to protect life, liberty and property, the Founders had to build a government strong enough to protect those rights but limited enough that it would never threaten them.

Thesis: Clearly answer the prompt by claiming (arguing) something. Provide a clear outline of what you will discuss in your body paragraph. [Claim] because [Supporting Argument 1] and Y [Supporting Argument 2].
The Founders created a Constitution that protected citizens' natural rights to a large extent, because they divided power so no branch could become a tyranny and added a Bill of Rights that directly protects life, liberty and property. However, at first those protections only fully covered some Americans.

Evidence 1: Remember TEA: Begin with a TOPIC SENTENCE, then introduce your EVIDENCE (facts and examples that support your argument) in the following sentences. Then through ANALYSIS, explain why the evidence matters and how it proves your thesis.
Topic: One major reason the Constitution protects natural rights is that the Founders divided power so no single group could take them away.
Evidence: Following Montesquieu, Articles I, II and III split the government into a legislative, an executive and a judicial branch. Each branch can check the others: the President can veto laws, Congress can override a veto with 2/3 of both houses, and the Senate must confirm judges.
Analysis: This matters because tyranny, the thing the colonists had just fought against, happens when one person or group holds all the power. By making the branches compete, the Founders made it very hard for any leader to take away citizens' liberty, which shows they protected natural rights through the structure itself.

Evidence 2: Remember TEA: Begin with a TOPIC SENTENCE, then introduce your EVIDENCE (facts and examples that support your argument) in the following sentences. Then through ANALYSIS, explain why the evidence matters and how it proves your thesis.
Topic: Another reason is that the Bill of Rights directly protects life, liberty and property.
Evidence: When the Antifederalists refused to ratify without it, the Founders added the first ten amendments in 1791. The 1st Amendment protects speech and religion, the 4th bans unreasonable searches and seizures, and the 5th says no person can be "deprived of life, liberty, or property, without due process of law."
Analysis: The 5th Amendment uses almost the exact words of Locke's natural rights, which proves the Founders meant to protect them. Writing these rights down gave citizens a guarantee they could use against their own government, so the Constitution protects natural rights in its text, not just in theory.

Alternative Perspective: Remember TEA: Begin with a TOPIC SENTENCE, then introduce your EVIDENCE (in this case, the evidence that someone arguing the other perspective would say) in the following sentences. Then through ANALYSIS, explain why the evidence matters, but why ultimately your argument is stronger than the other perspective.
Topic: Critics argue that the Founders did not successfully protect natural rights, because those rights were only protected for some Americans.
Evidence: The Constitution protected slavery through the Three Fifths Compromise and the Fugitive Slave Clause, and it allowed the slave trade until 1808. At first, women, enslaved people and Native Americans also could not vote.
Analysis: This is true to an extent, because millions of people were denied their natural rights. However, the Founders also wrote Article V so the Constitution could change. The 13th Amendment (1865) ended slavery, and the 14th (1868) said no state can take anyone's "life, liberty, or property, without due process of law." The system they designed was eventually used to extend natural rights to everyone, which is why their Constitution succeeded to a large extent.

Conclusion (not on the class sheet, but the essay needs one): The Founders protected life, liberty and property to a large extent by dividing power and writing a Bill of Rights, even though those protections first reached only some Americans. Because they built the Constitution to be amended, the same document that once allowed slavery later became the tool used to protect everyone's natural rights.